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Provision of July 6, 2023
Register of provisions
n. 294 of July 6, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by Prof. Pasquale Stanzone, president, Prof. Ginevra Cerrina Feroni, vice president, Dr. Agostino Ghiglia and Attorney Guido Scorza, members, and Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, and on the free movement of such data, which repeals Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data (Legislative Decree No. 196 of June 30, 2003), as amended by Legislative Decree No. 101 of August 10, 2018, containing provisions for the adaptation of the national legislation to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With the complaint of September 17, 2022 submitted to this Authority, pursuant to Article 77 of the Regulation, Mr. XX complained about receiving several unwanted promotional calls from Ad Maiora Distribuzioni S.a.s. of Editrice Ad Maiora S.r.l.s. & C. (hereinafter "Company" or "Ad Maiora") and about not having received a response to requests for access and deletion of personal data, as well as opposition to further processing for marketing purposes, made on April 6 and May 6, 2022. Following these requests, which remained unanswered, the interested party reported being contacted again on September 13, 2022.

The Office, on September 27, 2022, made a request for information, pursuant to Article 157 of the Code, regarding what was stated in the aforementioned complaint.

The request, which was correctly delivered, remained unanswered for a long time, nor did the Office, on two separate occasions (October 28 and November 2, 2022), manage to contact the Company at the telephone number indicated on the contact page available at the link

<https://www.edizioniadmaiora.it/page/contactus-dove-siamo>, since both attempts resulted in the activation of the voicemail inviting the user to wait to speak with the operator without succeeding in the attempt due to the call being interrupted. Not having any further contact details, it was necessary to initiate a specific search activity to find another telephone number that was then used for the contact on November 2, 2022, during which a new deadline for a response was set for November 10. Despite the assurances of a prompt response expressed by the Company also during the Office's phone reminder on November 14, 2022, the response was received only on November 30, 2022, but it was not sent to the complainant, as instead indicated in the request for information pursuant to Article 157 of the Code and recalled in the discussions with the Authority. This obligation was therefore fulfilled by the Office.

In this response, Ad Maiora claimed that the complainant, holder of a telephone number found in a public directory, had been contacted several times during the year 2022 based on the interest shown by him during the purchase of a law manual in September 2021. The Company stated that it had blocked the number receiving the complained contacts after receiving the complainant's opposition request and had recorded the latter's wishes in the management program, as evidenced by the call log attached to the response.

In fact, the opposition was recorded on April 11, 2022, "and the subsequent assignments – pending a definitive deletion – remained in the status "in Processing," that is, suspended without any operator being able to proceed with direct contact." The call on September 13, 2022, was caused "by a mere

oversight" of an operator of Ad Maiora.

The incident reported by Mr. XX was not an isolated case, as the Guarantor has received other complaints of a similar nature over the years, of which a summary representation is provided below:

- Mr. XX (file no. 140494), with a complaint of July 10, 2019, had reported receiving a promotional call from an employee of Ad Maiora who, during the call, claimed to have obtained the contact details of the interested party by "a simple internet search," refusing to proceed with the deletion of the same data as they were made public. In this case, the Office sent a closure communication as no calls were found subsequent to the complained telephone contact and invited the Company to comply with the provisions of the Regulation, particularly regarding the obligation to respond to the exercise of the rights of the interested parties, as well as the principle of purpose concerning the correct use of data obtained from the web;

- also in the report by Mr. XX (file no. 126559), submitted on May 9, 2018, there had been... represented by the circumstance regarding the retrieval of telephone numbers from public directories by the publishing house Ad Maiora. In this specific case, the telephone operator claimed to have collected the interested party's telephone number from the Bar Register of Rome. The Office had sent a courtesy note to the notifier, indicating the opportunity to first contact the holder to verify the existence of suitable consent, highlighting that the request would be taken into consideration in case other similar requests were received.

- Ms. XX (file no. 103290), using the reporting form available on the Authority's website, indicated the calls made by the Company in 2015, emphasizing that she had received many others despite her request to delete her personal data from the company lists.

2. THE CONTESTATION

In light of what emerged from the preliminary investigation, based on the documentation acquired overall, on March 28, 2023, a communication to initiate proceedings was notified to Ad Maiora, pursuant to Article 166, paragraph 5, of the Code, with which the Company was contested for the alleged violation of the following provisions of the Regulation:

Articles 12 paragraphs 2 and 3, 15 and 21, paragraph 2, of the Regulation for failing to satisfy, within the legal terms, the requests for access and opposition made by the interested parties;

Articles 6, paragraph 1, letter a) and 7 of the Regulation, as well as Article 130 of the Code for having made promotional calls in the absence of consent;

Articles 5, paragraph 2, 24, paragraphs 1 and 2, and 25 of the Regulation for failing to adopt adequate organizational measures aimed at keeping track of processing activities and demonstrating compliance with the regulations.

3. LEGAL ASSESSMENTS

As already noted in the introduction (paragraph 1), it is observed that the reports and complaints received by the Authority, considered overall, provide a picture of inadequate control and non-compliance with the regulations regarding the protection of personal data by the Company, despite the cautious notice expressed by the Office as early as 2019 (see cited complaint of XX - file no. 140494).

With reference to complaint XX, from the analysis of the extract of the call register attached to the response – without considering the calls "In Processing" (as they were suspended "pending a definitive deletion") – there were further attempts to contact the interested party even after the formal warnings from the latter on April 6 and May 6, 2022. In fact, the calls of May 17, 2022, at 15:44, September 13, 2022, at 17:56 (reported by the complainant), and November 2, 2022, at 17:09 are recorded as "missed," the latter having been made after the Authority's intervention with the request for information pursuant to Article 157 of the Code on September 27, 2022. Therefore, the right of opposition of the interested party was not timely recorded by the Company, as seven months had passed since the first warning on April 6, 2022. Nor do the "suspended" contacts marked with the wording "In Processing," "pending a definitive deletion," seem to satisfy the requirement for immediate implementation of the aforementioned right of opposition. The very concept of "suspension" consists of the temporary exclusion, and therefore not definitive, of the interested party from promotional campaigns.

The recurrence of unwanted calls after the expressed denial was also reported in Ms. XX's notification, demonstrating improper management of the right of opposition of the interested parties by the Company.

The latter not only appears not to have timely recorded the opposition expressed by the interested parties but also does not seem to have responded to the requests for the exercise of the rights provided for in Articles 15 and 21 of the Regulation – made by Mr. XX on April 6 and May 6, 2022 – within the terms provided for in Article 12, paragraph 3, of the Regulation, nor has it provided explanations regarding the lack of response. Ad Maiora addressed the requests made only after being prompted several times by the Authority.

Thus, an omissive conduct emerges, inconsistent with the obligation of the data controller to facilitate, with appropriate measures, the exercise of the rights provided for by the regulations on the protection of personal data and to satisfy, without delay, the related requests, including the right of opposition that can be made "at any time." It is deemed necessary to confirm the violation of Article 12 paragraphs 2 and 3, as well as Articles 15 and 21, paragraph 2, of the Regulation (see, in this regard, provision of August 5, 2022, no. 296, web doc no. 9827135; provision of August 5, 2022, no. 297, web doc no. 9817535; provision of October 20, 2022, no. 349, web doc no. 9827153; provision of December 15, 2022, no. 430, web doc no. 9860553; provision of December 15, 2022, no. 431, web doc no. 9856345; provision of March 9, 2023, no. 71, web doc no. 9880336).

With reference to the collection online, or in public directories, of personal data and the use of these for marketing purposes (as occurred for Mr. XX's data, through a simple internet search, and for Mr. XX and Mr. XX, by consulting the Bar Register), it has been deemed reasonable to deduce that such practices fall within the usual operational modalities of the Company or, at the very least, are not considered in contrast with them. In this specific case, therefore, Ad Maiora used the data collected on the internet and in public directories to promote its services and products, pursuing a purpose that is different and incompatible with that.

original consent that authorized at least the first promotional call, since, even in the call log attached to the response, there were attempts to contact Mr. XX's number even before the purchase of the volume that, according to the Company, would have justified the subsequent calls. In any case, the "legitimate interest" invoked by the Company in this specific case cannot replace the consent of the data subject as the general legal basis for marketing and is admissible only in the circumstance of so-called "soft spam" regulated by Article 130, paragraph 4, of the Code, according to which, valuing the relationship between the data controller and the recipient/data subject, the use of only electronic mail is permitted to send promotional messages to users who have not given any consent in this regard, but who have already purchased a product or service similar to that which is the subject of the promotional email, without prejudice to the right to object to the processing. This specific exemption does not apply to the case at hand, since the processing complained of concerned the telephone number of the data subject and not the email address. It should also be noted that dissent or opposition to further processing always prevails over any consent originally expressed (see provision of January 15, 2020, no. 7, web doc no. 9256486; see provision of March 11, 2021, no. 99, web doc no. 9577065).

It is clear that the calls made after the complainant's denial, as well as the opposition expressed during the contacts by Mrs. XX, were found to lack the legal basis of consent, confirming the violation of Articles 6, paragraph 1, letter a) and 7 of the Regulation as well as Article 130 of the Code. As already stated, the facts described by Mr. XX cannot be classified as exceptional since the conduct has been reported to the Authority also in other circumstances and seems rather to denote a systematic lack of organizational and control measures by the Company, particularly regarding the obligation to demonstrate compliance with the rules (accountability of the controller). Therefore, the violation of Articles 5, paragraph 2, 24, paragraphs 1 and 2, and 25 of the Regulation must be confirmed.

4. CONCLUSIONS

In light of the arguments set forth in point 3 of this provision, noting that the Company has not submitted defensive writings, nor has it requested to be heard by the Authority, and therefore considering the contested violations confirmed, it is necessary to:

- pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibit the processing of personal data collected without obtaining the necessary prior informed, free, specific, documented, and unequivocal consent of the data subjects in relation to marketing activities, pursuant to Articles 6 and 7 of the Regulation as well as Article 130 of the Code;
- as a consequence of this prohibition, since the described processing of data, including storage, is unlawful, it is deemed necessary, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order Ad Maiora to promptly delete said data, save for those that must be retained for compliance with a legal obligation or for the defense of a right in judicial proceedings as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order Ad Maiora to adopt suitable procedures aimed at constantly verifying that the personal data in its possession are processed in full compliance with the relevant provisions (and, in particular, the obligation to obtain prior consent as indicated above), pursuant to Articles 6, 7, and 13 of the Regulation as well as Article 130 of the Code;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order the Company to ensure a full and effective response to the exercise of rights (Articles 12 and 15 of the Regulation) and to satisfy, without unjustified delay, the related requests of the data subjects, including the right to object which can be raised "at any time," proceeding with immediate registration in the company systems;

Finally, regarding the treatments already carried out, considering the unlawfulness of the conduct, it is deemed that the conditions exist for the application of an administrative monetary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

5. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE MONETARY SANCTION

Based on the above, various provisions of the Regulation and the relation to the processing of personal data, in compliance with the principles of lawfulness, fairness, and transparency as outlined in Articles 5 and 6 of the Regulation);
 d) to ensure that Ad Maiora implements appropriate technical and organizational measures to protect personal data against unauthorized or unlawful processing and against accidental loss, destruction, or damage, in accordance with Article 32 of the Regulation.

This decision is made in light of the need to ensure compliance with the applicable legal framework and to protect the rights of data subjects, while also considering the operational capabilities of Ad Maiora.

The Authority reserves the right to monitor compliance with this decision and to take further action if necessary, in accordance with its powers under the Regulation.

This decision is effective immediately and must be complied with without delay.

Done in Rome, on [date].

[Signature]

[Name]

[Title]

[Authority]

specifics of the obligation to obtain prior consent as per the previous letters a and b of this provision), pursuant to Articles 6, 7, and 13 of the Regulation as well as Article 130 of the Code;
 d) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the Company to ensure a full and effective response to the exercise of rights (Articles 12 and 15 of the Regulation) and to satisfy, without unjustified delay, the related requests of the data subjects, including the right of opposition which may be exercised "at any

time,” proceeding with immediate registration in the company’s systems;

e) pursuant to Article 157 of the Code, orders the Company to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken in order to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative monetary sanction provided for by Article 83, paragraph 5, letter e) of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Ad Maiora Distribuzioni S.a.s. of Editrice Ad Maiora S.r.l.s. & C., represented by its legal representative, to pay the sum of euro 15,000.00 (fifteen thousand/00), as an administrative monetary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of euro 15,000.00 (fifteen thousand/00) according to the methods indicated in the attachment, within 30 days from the notification of the present provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981;

PROVIDES

as an ancillary sanction, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Guarantor No. 1/2019, the publication on the Guarantor's website of this provision and, pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation in the internal register of the Authority, provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, July 6, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Ghoglia

THE SECRETARY GENERAL

Mattei